EDUCATORS UNION OF ZIMBABWE
versus
THANDO BHEBHE
and
MOLLYN BANDA

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 22 May & 9 June 2026

Opposed Application

M P Mamimine, for the applicant
M Gwisai, for the 1st & 2nd respondents

DEMBURE J: On 22 May 2026, the court, after hearing argument from the parties' legal practitioners, handed down an *ex tempore* judgment, the operative part of which was that the application was granted with costs. The first and second respondents' counsel requested the written reasons for the court's decision. The following are the full written reasons thereof.

The applicant approached the court with this urgent court application for a declaratory order and consequential relief. This application was instituted in terms of s 14 of the High Court Act [*Chapter 7:06*] as read with r 59(6) of the High Court Rules, 2021. The application was strenuously opposed by the respondents.

THE BACKGROUND

The applicant, a registered trade union, has been engaged in enduring litigation with the respondents over control and management of the union. The court, *per* TAKUVA J, on 29 May 2025 in Case No. R-HCH 1948/25 issued a consent order directing the unfreezing of the applicant's bank accounts with ZB Bank and that the Secretary General shall call for a National Executive meeting within seven days of the unfreezing of the bank accounts to discuss the roadmap to the National Conference and the agenda(s) to be discussed at the National Conference. This order followed another dispute between the parties, which was determined by

MUSHURE J under Case No. HCH 1174/25. That National Executive Committee meeting was held on 11 June 2025. The meeting paved the way for the National Conference and the process of amending the Constitution of the Union.

The respondents challenged the outcomes of the National Executive meeting by filing a court application under Case No. HCH 3497/25 on 17 July 2025. They seek a declaratory order that the National Conference Roadmap and Elections Policy adopted at that meeting be declared *ultra vires* the Constitution of the applicant and, therefore, null and void, together with other consequential relief. The matter is still pending.

The applicant proceeded with its National Conference from 4 to 5 September 2025, wherein resolutions were passed to adopt the proposed amendments to the applicant's Constitution. Elections were also held, ushering in a new leadership for the union. There is no dispute from the papers before me that the respondents were not elected into any official positions at the Conference.

Before the National Conference in September 2025, the respondents had convened what they called an "Extra Ordinary Meeting" of the union on 29 August 2025. The impugned meeting passed resolutions, including resolutions appointing the first respondent as Acting Secretary General of the union and the second respondent as Acting President thereof. The respondents went on to communicate with various stakeholders, purportedly in their assumed leadership roles, following that meeting. This prompted the applicant to file this urgent court application on 16 September 2025.

The applicant averred that the alleged Extra Ordinary meeting convened by the respondents on 29 August 2025 was unconstitutional as it was not provided for in any provisions of the applicable Constitution of the union. The contention was that it was illegal and a nullity. Accordingly, it could not produce any valid outcomes or resolutions. The respondents' assumed positions were, therefore, the outcome of an illegality. It was further pleaded that the respondents do not hold any official positions within the applicant. That the first respondent had no authority to purport to act or represent the applicant as its Acting Secretary General and that she was previously dismissed from the post she once held. As for the second respondent, it was averred that she was not a member of the union as her membership was automatically terminated in 2024

for failing to pay her membership subscriptions. That she also holds no official position within the applicant.

It was also pleaded that proper leaders were those elected at the National Conference in September 2025. The applicant contended that the respondents had attempted a coup against the union's Constitution and legitimate structures. The applicant thus sought an order declaring the Extra Ordinary meeting held on 29 August 2025 unconstitutional and void; that the first and second respondents are not the Acting Secretary General and Acting President or President respectively, and do not hold any official positions within the applicant. The consequential relief was for an interdict against the first and second respondents, barring them from holding themselves out as the Acting Secretary General and Acting President or President of the applicant, respectively, and from purporting to hold any official positions within the applicant.

A provisional order, in the form of an interim interdict, was granted by the court on 19 September 2025, pending the return date. Before me, the applicant sought a final declaratory order and consequential relief in the form of a final interdict. The final relief was opposed by the respondents, who largely relied on the first respondent's opposing affidavit. That of the second respondent adopted the averments in the affidavit deposed to by the first respondent, and added a few facts.

The respondents, in their opposing affidavit, raised two preliminary points, namely that the application was fatally defective for lack of authority and the special plea of *lis alibi pendens*. They also pleaded on the merits. They denied that the roadmap to the National Conference had ever been discussed, as the National Executive meeting on 11 June 2025 ended in a deadlock. They also disputed that the elections policy was ratified at the Conference. They further contended that they filed an application for a declarator under HCH 3497/25 to have the resolutions of the National Executive Meeting of 11 June 2025 declared void. They claimed the National Conference lacked legitimacy and was a nullity. They confirmed that they were ushered into their purported leadership positions by a resolution of the meeting held on 29 August 2025, and denied that the meeting was illegal or unconstitutional. It was contended that the second respondent was a member of the applicant and would not have attended the Conference if she had not been. They moved the court to dismiss the application with costs on a higher scale.

I initially heard the matter on 12 February 2026, where I heard argument on the points *in limine* and reserved judgment. In terms of my judgment handed down on 2 March 2026, I dismissed the points *in limine* for lack of merit. This paved the way for the hearing on the merits held on 22 May 2026.

THE ADMISSIONS

At the hearing, Mr *Gwisai* submitted that the respondents intended to place their concessions or admissions on record so that the court would determine only the issue in dispute. While he initially referred me to the terms of the final order stated in the Provisional Order at p 171, he subsequently accepted that the terms of the final order sought by the applicant were those fully set out in the draft order at p 159 of the record. He stated that the respondents were no longer opposing the relief sought in para (2) of the draft order that the Extra Ordinary meeting held on 29 August 2025 be declared invalid and *ultra vires* the applicant's Constitution. They conceded on the part that the meeting of 29 August was invalid in terms of the Constitution. He further stated that in para (3), as it necessarily flows from the concession on para (2), it follows that the respondents concede that the first respondent is not the acting Secretary General of the applicant. But the second part, which reads that the first respondent does not hold any official position within the applicant, was not conceded and remains in dispute.

It was further submitted that, equally, flowing from the concession on para (2) concerning the Extra Ordinary meeting of 29 August, the respondents concede that the second respondent is not the acting President or President of the applicant. The narrow issue in dispute was whether they held any official positions in the union or applicant.

Ms *Mamimine* acknowledged that the concessions were indeed communicated before the hearing and that the remaining contested issue is whether the respondents hold any official positions in the union.

It was no longer in dispute that the impugned meeting of 29 August 2025 was a nullity and consequently that the first and second respondents, as admitted, were not the acting Secretary General and acting President or President of the applicant, respectively. With the admissions or concessions, nothing remained for the applicant to establish in respect of those admitted facts. The effect of the admissions is settled law. It is trite that once admissions are

made, it shall not be necessary or required to prove any fact admitted or lead any evidence to contradict the admitted fact on record. See s 36 of the Civil Evidence Act [*Chapter 8:01*] which states as follows:

> "**36. Admissions**
> (1) **An admission as to any fact in issue in civil proceedings, made by or on behalf of a party to those proceedings, shall be admissible in evidence as proof of that fact, whether the admission was made orally or in writing or otherwise.**
> (2) …
> (3) **It shall not be necessary for any party to civil proceedings to prove any fact admitted on the record of the proceedings**.
> (4) **It shall not be competent for any party to civil proceedings to disprove any fact admitted by him on the record of the proceedings**:
> Provided that this subsection shall not prevent any such admission being withdrawn with leave of the court, in which event the fact that the admission was made may be proved in evidence and the court may give such weight to the admission as the court considers appropriate, bearing in mind the circumstances in which it was made and withdrawn." (*my emphasis*)

The legal effect of an admission was restated in *Manyenga* v *Petrozim (Pvt) Ltd* SC 40/23, where the Supreme Court held that:

> "32. The effect of an admission has been held to be the following in the case of *Potato Seed Production (Proprietary) Ltd v Princewood Enterprises (Pvt) Ltd & Ors* HH 45-17 at p 4;
> > "Indeed, the effect of an admission is settled law. Once made it binds its maker with the attendant consequences see *Kettex Holdings P/L v S Kencor Management Services P/L* HH 236-15."
>
> 33. The consequences of making an admission which is not withdrawn is that it will not be necessary to prove the admitted fact(s): *Adler v Elliot* 1988 (2) ZLR 283 (S) at 288C. In addition, this Court, in the case of *Mashoko v Mashoko & Ors* SC 114-22, held that:
> > "The law on admissions in pleadings and indeed in evidence, is also settled. A party to civil proceedings may not, without the leave of the court, withdraw an admission made, nor may it lead evidence to contradict any admission the party would have made. By equal measure, a party is not permitted to attempt to disprove admissions made."

It would follow, therefore, that the applicant would be entitled to the relief related to what the respondents had conceded to. The relief was also something the court could competently grant. What the respondents dispute is only that the two of them do not hold any official positions in the applicant, and, therefore, contested that a declarator should be issued to that effect, and that they should be barred from purporting to hold any such positions. That became the narrow issue left to determine. The parties' legal practitioners made the following submissions thereto.

SUBMISSIONS FOR THE APPLICANT

Ms *Mamimine* submitted that the applicant has made a case showing that the respondents do not hold any official positions in the union or with the applicant. She further indicated that the applicant stated that the respondents have both lost their membership in the applicant. The first respondent automatically lost membership in terms of the Constitution after failing to subscribe for two months. The second respondent was expelled. Their attendance at the National Executive meeting was due to the applicant's intention to clarify every other issue, and not because they were still members of the National Executive, and that the court order by TAKUVA J indicated that the meeting be constituted in terms of the old Constitution. The position of the second respondent as a member of the National Executive had not ceased at that time. I must state that my exchanges with counsel and the main submissions she made were largely centred on whether the respondents are members of the applicant. I hasten to state that no relief is, however, sought confirming that position. The disputed part of the relief sought is merely centred on whether they hold any official positions in the union.

Ms *Mamimine* further argued that the first respondent held no positions in the union after the September Conference. It was also argued that, in their notice of opposition to the application for leave to appeal the judgment of NDUNA J, they accept the changes that have occurred in the union. In respect of costs, counsel submitted that while it is a matter within the discretion of the court, she insisted that costs on an ordinary scale are justified. Given the concessions, there was no longer insistence on a claim for costs on a higher scale. She prayed for the application to be granted with costs.

SUBMISSIONS FOR THE RESPONDENTS

Per contra, Mr *Gwisai* submitted that the status of the first and second respondents as members was confirmed by the judgment of TAKUVA J. He further argued that the issue in dispute can be resolved by considering what the real cause of action is in this matter. The second point *in limine* raised by the respondents is that this matter is *lis pendens* because it relates to the cause of action in the matter already before this court in case number HCH 3497/25. The applicant's response was very clear. It made it clear that the cause of action was different. The cause of action in this matter relates to the validity of the meeting held on 29 August 2025 and its

resolutions, which ushered in the respondents. See the introduction at p 312, para 1.4. There is a summary of what applicants seek on the merits, and it is sought that the respondents and their assumed positions held as of the end of August have no constitutional or legal support. They are unconstitutional and *ultra vires* the union's Constitution. The cause of action is clearly centred on the 29 August meeting, and its lawfulness, and this is the basis on which the court then dismissed the *lis pendens*. I was referred to para 46 at p 18 of my judgment in HH 201/26, where the court agreed with the applicant that the causes of action were different. At this stage, to then seek to bring in the issue of whether they hold any positions in the union is, in fact, to seek to draw this court into the cause of action under HCH 3497/25 on the National Conference held in September, which will be determined therein. It is in that main matter that the issue of whether the 11 June 2025 meeting and its outcome regarding election policies and subsequent elections were in compliance with the consent order by TAKUVA J will be dealt with. If the court holds that there was no compliance, everything that rests on them will fall away, including the National Conference scheduled for later.

Counsel also contended that the application for leave to appeal against the judgment by NDUNA J was actually dismissed. That there is no sufficient evidence on the record to deal with the aspects of whether they are union members or not, or whether they are officials. It clearly is not because that is not the cause of action here. The evidence in the founding affidavit relates to them acting as President or acting as Secretary General. See p 106 of the record. The letters relate to their roles, which the applicant said arose from the purported 29 August Extra Ordinary meeting, which they said is void. That is also the argument in the heads of argument in para(s) 1.4, 3.1, 3.3, 3.1.4, 3.1.5 and 3.4. Accordingly, even in its own heads of argument, the applicant remained focused on the legality of the 29 August meeting as the basis for its argument.

Counsel went on to argue that once it is conceded that the 29 August meeting was unlawful, that the first respondent is not the acting Secretary General, that the second respondent is not the acting President, and that they should not hold themselves out as such, the matter is brought to an end. To try and bring in the second part is, with respect, to sneak in a determination on what is already before this court in HCH 3497/25 and, in part, on what has already been dealt with by NDUNA J in HHCB 269/25. The respondents would pray that the application relating to their holding any positions be dismissed. In relation to the costs, it was submitted that there be no

order as to costs. Mr *Gwisai* submitted that this matter should not have gone this far in view of the very papers before this court and submissions made by the applicant.

REPYING SUBMISSIONS FOR THE APPLICANT

Ms *Mamimine* argued that the applicant persists with its position that the respondents are not members and officials of the union. That the issue arising from the relief sought is properly before the court. While the application for leave to appeal was dismissed, the applicant is still within time to seek leave in the Supreme Court. The dismissal must not be taken as the end of the issues before NDUNA J. The application may be granted even on the remaining contested parts. In their papers already on record, the respondents do accept that the union has moved on, in light of the elections held in September and the Constitution now in place.

THE QUESTION FOR DETERMINATION

The only issue left for the court to determine after the concessions made by the respondents was whether the respondents hold any official positions within the applicant.

THE ANALYSIS

This court has the discretion to grant a declaratory order with or without consequential relief in terms of s 14 of the High Court Act [*Chapter 7:06*]. It is trite that for that discretion to be triggered, the applicant must establish that it has an interest in the right to which the order will relate. In other words, it must be shown that the applicant is an interested person in the sense of having direct and substantial interest in the subject matter of the litigation. The interest must concern an existing, future or contingent right or obligation. See *Johnsen* v *Agricultural Finance Corp* 1995 (1) ZLR 65 (S) at 72E-F, where GUBBAY CJ 9 (as he then was) had occasion to consider when a *declaratur* should be granted and made the following apposite remarks:

> "The condition precedent to the grant of a declaratory order under section 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an 'interested person', in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto. But the presence of an actual dispute or controversy between the parties interested is not a pre-requisite to the exercise of jurisdiction."

The applicant seeks not only a declaratory order regarding the disputed issue but also a final interdict as consequential relief. The requirements for a final interdict are also trite. Thus, for an applicant to succeed in obtaining a final interdict, it must establish:

(i) a clear right;

(ii) an injury actually committed or reasonably apprehended, and

(iii) the absence of similar or adequate protection by any other ordinary remedy.

See *Econet Wireless Holdings & Ors* v *Minister of Finance & Ors* 2001 (1) ZLR 373 (S) at 374; *Setlogelo* v *Setlogelo* 1914 AD 221 at 227.

In determining the issue in dispute, I must first clarify the words "official position". It appears Ms *Mamimine* confused this with membership and or conflated the two. She thus extensively submitted that the respondents had lost their membership in the union, in addition to submissions that they do not hold any positions. In its legal sense, holding an "official position" (which is often associated with "an office holder" or "officer") relates to an individual who has been formally elected, appointed or mandated by an organisation's internal constitution or governing rules to perform specific functions on its behalf. In other words, "an official position" means "a position of employment, or a position, whether elected or appointed, as president, vice president, chair, deputy chair, secretary, public officer, treasurer, director or equivalent." See the Law Insider: https://lawinsider.com.

There is, therefore, clearly a distinction between an ordinary member and one who holds an official position. While averments were made in the founding affidavit and Ms *Mamimine*'s argument that the respondents are not members of the applicant, those averments are irrelevant to the question or issue to be determined. The issue is only whether they hold any official positions, as the relief seeks a declarator that they do not hold any such official positions and an interdict against them purporting to hold such positions. The issue and the relief do not, therefore, warrant that I necessarily resolve the dispute as to whether they are members of the applicant. I will, therefore, turn to consider whether a case was made in the papers for the relief sought in respect of the matter in contention.

It is an accepted principle of the law that an application stands or falls on its founding affidavit. The court must dispose of an application on the basis of the founding affidavit. It is in

that founding affidavit that a case is made by the applicant for the relief sought. See *Ahmed* v *Docking Station Safaris (Pvt) Ltd t/a CC Sales* SC 70/18. The same position was restated in *Chironga & Anor* v *the Minister of Justice, Legal & Parliamentary Affairs & Ors* CCZ 14/20 at p 8, where HLATSHWAYO JCC said:

> "It is trite that an application stands or falls on the averments made in the founding affidavit. See Herbstein & van Winsen the Civil Practice of the Superior Courts in South Africa 3rd ed (hereinafter 'Herbstein &Van Winsen or the Authors') p 80, where the authors stated that:
>
> > "The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits any fortifying paragraphs in his replying affidavits will be struck out.""

I must consider the founding affidavit to determine whether a case was pleaded in respect of the issue in contention. It is the pleading that must answer whether the applicant has set out a case that the respondents do not hold any official positions in the union, thereby supporting the grant of the contested part of the relief sought. When one looks at para 27 of the founding affidavit at p 11, which falls under the grounds of application, the applicant pleaded its cause of action and clearly stated the basis for why the respondents' actions are illegal, thereby justifying the relief sought. The relevant part of the applicant's founding affidavit reads:

> "25. GROUNDS OF APPLICATION
>
> 26…
>
> 27. I conten[d] that Respondents' actions are illegal in one or more of the following respects:-
>
> 27.1 **1st Respondent does not hold any position within the union**. **She was not elected to assume any post within the union. The previous post she held, she was dismissed.** Therefore, she has no authority to write any letters purporting to represent the union as its Acting Secretary General. **Same applies to the 2nd Respondent. She does not hold any official position within the union**.
>
> 27.2 The 2nd Respondent is not a member of the union and therefore **cannot hold any office**. She last paid her subscriptions in July 2024. She was advised that her membership automatically terminated when she fell into two months arrears. I will not belabour the court with this issue since its *sub judice* under HCBC269/25." (*my emphasis*)

In their substantive response contained in the first respondent's opposing affidavit at p 178, the respondents responded to these averments as follows:

"AD PARA 27

24. Disputed, **the respondent is a legitimate member** as further confirmed by the Justice Mushure and Justice Takuva's judgments.

AD PARA 27.2

25. Applicant is not telling the truth before the court. **The 2nd respondent is a member** as she even attended the applicant's conference in September 2024 she would not have attended this conference is she was not a member. Not only did she attend but also she was a co-chair of the conference giving welcoming remarks and presented the Humanitarian Policy. Further, she was tasked with disciplinary issues in the 27 February 2025 meeting called by the applicant … **buttressing that she is a *bona fide* member…**" (*my emphasis*)

The respondents clearly did not meet the applicant's averments to the effect that they held no official positions within the applicant. They simply chose to relate to the issue of membership. Again, the issue of the proper leadership or those officially elected at the National Conference in September 2025 was further pleaded in para(s) 31 and 32 as follows:

"31. The 1st Respondent in particular has no *bona fide* cause of complaint. She participated in the 11th of June 2025 meeting resolutions which paved way to the National Conference. **She attended the National Conference where proper and substantive leaders of the union were elected. She cannot somersault now**.

32. I also contend that the 2nd Respondent is no saint. She participated in the elections by forwarding nominations to the elections board. **She was not nominated nor was she elected in any official post**. I attach hereto as Annexure "J" series copies of her nominations." (*my emphasis*)

The respondents did not specifically controvert these averments. In their para(s) 29 and 30, they did not deny the averments made that they were not elected at the National Conference in September 2025 to any official positions. They were called to specifically deny these allegations in their affidavit. They did not. They instead responded in their opposing affidavit as follows:

"AD PARA 31

29. This is not correct at all. The applicant is contradicting itself by calling the respondents no members and now in this paragraph confirming that they are members to whom applicant is confirming that they attended 11th of June 2025 as members. Therefore the provisional order must not be confirmed and must be dismissed with costs on a higher scale.

AD PARA 32

30. See annexure I and J hereto being correspondence in regard to complaining about the way the issue of the elections was being handled."

From the respondents' substantive responses above and in particular on the averment that they do not hold any official positions or were not elected into office at the September Conference, they did not dispute that. All they focused on, again, was the issue of membership. They did not specifically controvert the averments made in para(s) 27.1, 27.2, 31, and 32 of the founding affidavit, in relation to the fact that they were not holding any official positions within the applicant after the September National Conference, when a new leadership was elected. It is trite that anything not denied or specifically controverted in an affidavit is taken to be admitted. See *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise & Ors* 1993 (2) ZLR 121 (S). Thus, the unanswered material allegations in the affidavit are conceded. There is nothing more, therefore, for the applicant to say or prove, as one cannot be called to prove what has been admitted.

It is clear from the record before me that the applicant has made a case for the relief sought, including a declarator that the respondents do not hold any official positions in the union and for an interdict against them from purporting to hold any such positions. Given also the concessions made in respect of the illegality of the 29 August meeting, the purported official positions they assumed therefrom, being products of a nullity, cannot stand. They admitted so. Clearly, the requirements for this court to issue a *declaratur* are satisfied. There is no doubt that the applicant is an interested person and that the right it seeks to be declared is not academic. The letters from pp 104-123 of the record are communications from the first and second respondents purporting to be the Acting Secretary General and the Acting President or President of the applicant, respectively.

The respondents sought to establish parallel structures and purported to be acting in those official capacities to the relevant stakeholders. In these circumstances, the applicant, which has a Constitution and office holders elected at the September 2025 National Conference, has a clear right to seek that they be interdicted from purporting to be in those capacities they assumed at the admittedly illegal meeting of 29 August 2025 and also from purporting to hold any official positions in the union. The respondents did not file any counter-application to nullify the elections at the National Conference or the resolutions thereof. It is well-settled that a notice of opposition is only a shield of defence, not a sword of attack. See *Dimbi* v *Ronwen Investment (Pvt) Ltd* SC 08/13. While Mr *Gwisai* related to the challenge of the 11 June 2025 meeting,

which is still pending under HCH 3497/25, that is merely a pending matter. The respondents have not yet established their case to impugn the validity of any processes arising from the 11 June 2025 meeting as illegitimate or unlawful. I accept that there is reasonable apprehension of injury to the applicant arising from their conduct. There is also no doubt that there is no other adequate ordinary alternative remedy that can afford the applicant similar protection.

Given the concessions the respondents made and their failure to challenge the averments that they do not hold any official positions within the union, the relief sought ought to be granted, even in respect of what Mr *Gwisai* alleged were the disputed parts thereof. Mr *Gwisai* chose to ignore the clear averments I have set out above, which form the basis of the order sought, including the fact that they hold no official positions. He merely selected the averments related to the main contention regarding the validity of the 29 August 2025 meeting. It is also clear that the applicant pleaded a case that the respondents do not hold any official positions in the applicant. That was part of its cause of action if one properly considers the founding affidavit from para(s) 27.

COSTS

The matter of costs is within the court's discretion. The general principle is that costs should follow the cause. Accordingly, unless there are good reasons to depart therefrom, a successful party ought to be awarded his or her own costs. While the respondents have conceded, which is commendable, I am of the view that the concession came late, after they had been vigorously opposing the application and had even raised some points *in limine*, which were dismissed, with costs being reserved in the cause. From their papers, they had not seriously challenged that the purported Extra Ordinary Meeting held on 29 August 2025 was not convened in terms of any provisions of the applicant’s Constitution.

In my view, the concessions, which were properly made in the circumstances, ought to have been made earlier, and further unnecessary costs might have been avoided. In any case, their insistence that there was still a dispute worth arguing after their concessions was also unreasonable. Their pleadings do not support the claim that the facts regarding whether they hold any official positions in the union were in dispute at all. The applicant has surely been made to suffer unnecessary costs, and it is only fair that it recovers the wasted costs thereof.

It is for the above reasons that the court entered judgment in favour of the applicant. Accordingly, the following final relief was granted in terms of the draft order sought at p 159 of the record:

"IT IS ORDERED THAT:

1. The instant application succeeds with costs.
2. The Extra Ordinary Meeting held on 29 August 2025 be and is hereby declared unconstitutional, null and void.
3. 1st Respondent is not the Acting Secretary General of the Applicant and does not hold any official position in the union.
4. 2nd Respondent is not the Acting President or President of the Applicant and does not hold any official position in the union.
5. 1st Respondent be and is hereby interdicted from holding herself as the Applicant's Acting Secretary General or purporting to hold any official position within the Applicant.
6. 2nd Respondent be and is hereby interdicted from holding herself as the Applicant's Acting President or President and purporting to hold any official position within the Applicant."

DEMBURE J: ……..

Tsunga Law International, applicant's legal practitioners
Matika, Gwisai & Partners, respondents' legal practitioners